



GOVERNANCE

ETHICS IN GOVERNANCE

MODULE - 10

INSTITUTIONAL FRAMEWORK

RECOMMENDATIONS

1 Rashtriya Lokayukta should be set up. It should have jurisdiction over all Union Ministers (except. PM), state Chief Ministers, all persons holding public office equivalent in rank to a Union Minister and MPs

2 Lokayukta should be set up in every state. It should have jurisdiction over cases of corruption against Ministers and MLAs.

3 A local bodies Ombudsman should be constituted for a group of districts to investigate cases against the functionaries of the local bodies.



INSTITUTIONAL FRAMEWORK

RECOMMENDATIONS

4 State Vigilance Commission may be empowered to supervise the prosecution of corruption related cases.

5 The investigative agencies should acquire multi-disciplinary skills.

6 Modern techniques of investigation should be deployed like electronic surveillance, video and audio recording of surprise inspections, traps, searches and seizure.

7 A reasonable time limit for investigation of different types of cases should be fixed for the investigative agencies.



SOCIAL INFRASTRUCTURE

CITIZEN'S INITIATIVES

1 Engagement of civil society and the media would give citizen's a 'voice'.

2 Some successful civil society engagements are:

i Report Card Survey of Public Affairs Centre, Bangalore.

ii Jan Sunwai by Mazdoor kisan Shakti Sangathan, Rajasthan

iii Campaign for Electoral Reforms and citizens' charters by Lok Satta, Hyderabad.

iv Campaign for Effective Municipal Decentralization by CIVC, Bangalore.

v Public Discussion on
i. Municipal and state budgets by Disha and PROOF of Bangalore.
ii. Participatory municipal budgeting by Janagraha, Bangalore.

vi Vote Awareness campaign by Catalyst Trust, Chennai.

CITIZEN'S INITIATIVES

3 Jan Sunwai of Mazdoor Kisan Shakti Snghatan

- a** MKSS got access to employments rolls, vouchers, beneficiary lists and completion and utilization certificates and then subjected the same to scrutiny in public hearings call Jan Sunwai.
- b** This unearthed large scale corrupt practices like false muster rolls, false bills and vouchers, and false completion and utilization certificates.
- c** As a result of this initiative of MKSS, Government of Rajasthan institutionalized the ward sabha and gave the following powers.
 - i** To conduct social audit of Government programmes.
 - ii** To approve proposals for public works
 - iii** To certify the proper execution of works.



CITIZEN'S INITIATIVES

3 d Steps to facilitate the engagement of civil society in governance.

i Inviting civil society to oversee government programmes.

ii Establishing and disseminating service standards

iii Establishing credible complaints mechanisms

iv Enforcing access to information

v Using public hearing to audit government activities.

vi Holding integrity workshops and public hearings at local levels.

vii Incorporating corruption as a subject in education curriculum

viii Setting up websites on containing corruption, facilitating dialogue and feedback from citizens.



SOCIAL INFRASTRUCTURE

CITIZEN'S INITIATIVES

4 Government should use positive inducements or rewards to disclose information on corruption.

5 Recommendations

a Remedy for sub-standard service levels should be specified in Citizens' Charter itself.

b Reward schemes should be introduced to incentivize citizen's initiatives.

c School awareness programmes should be introduced, highlighting the importance of ethics and how corruption can be combated.



Citizen's Charter

SOCIAL INFRASTRUCTURE

FALSE CLAIMS ACT

1 Salient features of US False Claims Act

- a** Any person having knowledge about a fraud committed by another person or entity may file a law suit on behalf of the federal government.
- b** And if the fraud is established in a court of law, the person committing the fraud is penalized and the plaintiff is rewarded with a percentage of recovery.
- c** The provider of goods or services in public procurement should offer to federal Government the best price.
- d** If any other customer is provided a more favourable price for the same quantity, the contractor is liable to make good the difference in price.



SOCIAL INFRASTRUCTURE

FALSE CLAIMS ACT

2 Recommendation

Legislation on the lines of US False Claims Act need to be enacted with the following provisions:

- a** Any person or entity can bring a case against any person or entity for a false claim against government.
- b** If the false claim is established in the court, then the agency responsible shall be liable for penalty equal to 5 times the loss sustained by the exchequer.
- c** The person who bought the suit shall be suitably compensated out of the damages recovered.



ETHICS IN GOVERNANCE

SOCIAL INFRASTRUCTURE

ROLE OF MEDIA – RECOMMENDATIONS

1 Evolve norms requiring proper screening of all allegations and complaints by media.

2 Government agencies should share details about corruption cases regularly to media.



SYSTEMIC REFORMS

1 *Monopoly + Discretion – Accountability = Corruption*

2 *Systemic Reforms* imply developing processes such that there is minimal scope of corruption.

3 Examples of Systemic Reforms include:

i Computerization of Railway Passenger Bookings

ii Merit-based selection to professional colleges in Karnataka through **Common Entrance Test**

iii Teachers Appointment Scheme of Karnataka

iv Unit Area Scheme of Delhi that provided for normative basis for calculation of property tax.

v E-cops of Punjab that provides for online registration of complaints and their systematic follow-up.



SYSTEMIC REFORMS

4 Promoting Competition

Examples for competition curbing corruption:

- i Gradual de-monopolization of telecom sector.
- ii Private players providing direct marketing services to farmer outside the government controlled mandis in Madhya Pradesh.

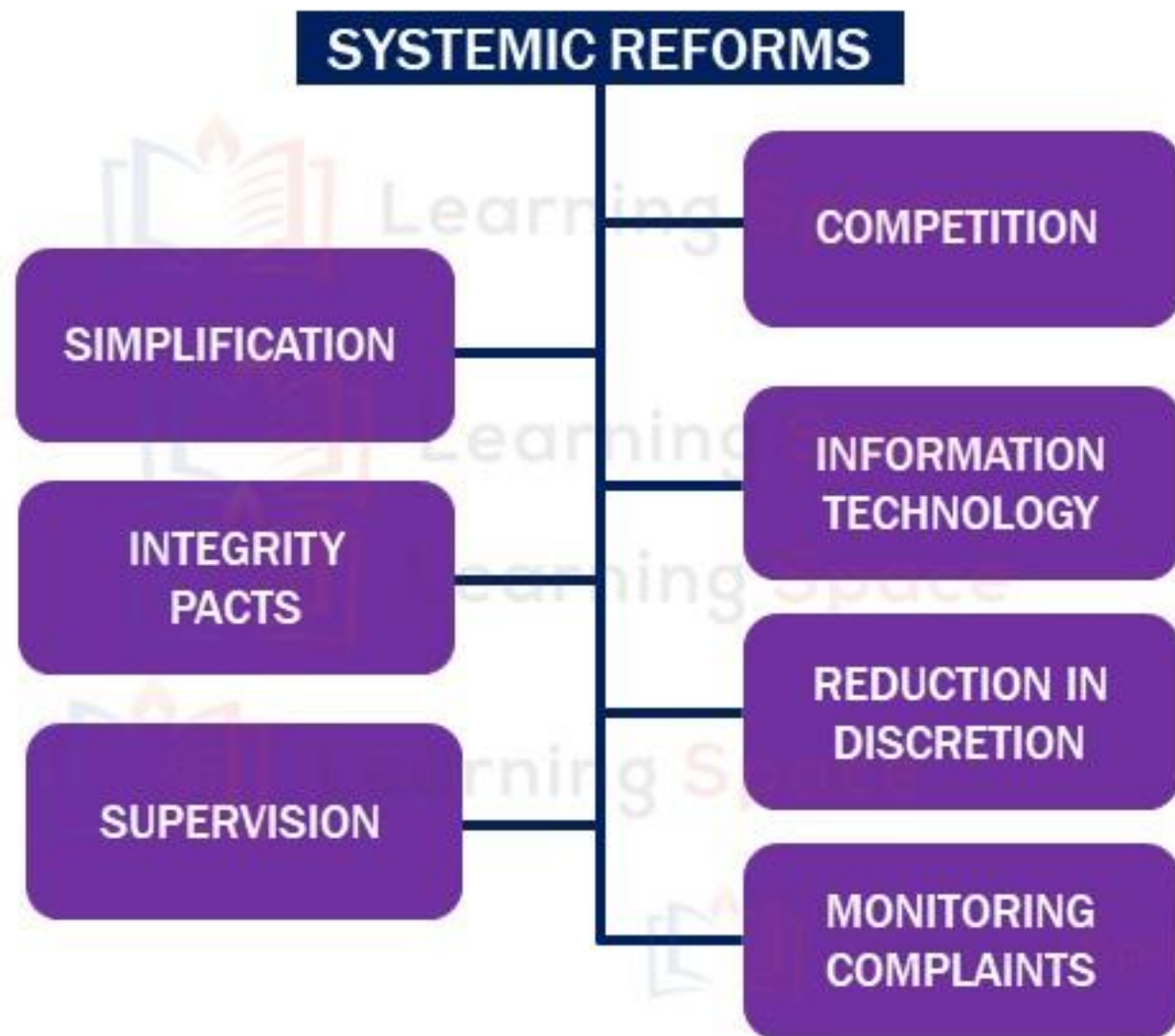


SYSTEMIC REFORMS

5 Recommendations

- i** Exercise to identify the areas of monopolies in every department and adding the element of competition in such departments, needs to be undertaken.
- ii** Restructure centrally sponsored schemes such that the states that promote competition are incentivized.





SYSTEMIC REFORMS

6 Simplifying Transactions – Recommendations

- i** Single Window approach
- ii** Minimizing hierarchical tiers
- iii** Stipulating time limits for disposal.
- iv** A system of rewards and incentives for simplification of procedures may be introduced in every department.

- v** Positive Silence – If the permission is not given within the stipulated time, it shall be deemed to have been given.



SYSTEMIC REFORMS

7

Using Information Technology

i

Gyandoot

- e-governance project in Madhya Pradesh that provides information about prevailing agricultural produced prices at auction centres and easier processes for obtaining copies of land records.



AN E-GOVERNANCE
INITIATIVE, GYANDOOT

ii

Bhoomi

- e-governance project of Karnataka under which land records have been computerized.
- Now, farmers can get a copy of the record of Rights, Tenancy and Crops (RTC) from a kiosk.
- Earlier, the farmer had to approach village revenue official and that involved bribery.



Bhoomi Online

SYSTEMIC REFORMS

7 Using Information Technology

- iii** IT by itself need not reduce corruption always, AP's scheme of the Computer-Aided Administration of Registration Department Programme (CARD) failed to arrest corruption in rural sub-Registrar Officers.
- iv** Before any introduction of IT is attempted, it is necessary that the existing procedures are properly re-engineered and made computer adaptable.



SYSTEMIC REFORMS

8 Integrity Pacts

- i** Integrity Pacts refer to the agreement between the public agency involved in procuring goods and services and the bidder for a public contract to the effect that the bidders have not paid and shall not pay any illegal gratification to secure the contract in question.
- ii** Such pacts involve oversight and scrutiny by independent, outside observer.

9 Reducing Discretion

- i** Discretion breeds corruption
- ii** The best example for elimination of discretion leading to reduction in corruption is the computerized, transparent system for effecting teaching transfers in Karnataka.



SYSTEMIC REFORMS

10 Recommendation

- i** In every department, processes should be redesigned such that discretion is eliminated.
- ii** Decision - Making on important matters should be assigned to a committee rather than individuals.



11 Supervision

- i** Supervision in the form of random inspections, surprise visits, confidential feedback from citizens/clients, putting procedures in place which make it difficult to seek bribe, use of decoy clients etc.



11

a



SYSTEMIC REFORMS

12 Monitoring Complaints – Recommendations

- i** Online complaint Tracking System be set up at all officers. If possible, the task of tracking complaints should be outsourced.
- ii** There should be 'audit' of complaints in public offices.
- iii** Systemic deficiencies must be identified from every complaint and remedial measures be taken.



SYSTEMIC REFORMS

13 Audit – Recommendations

- i** Any major irregularity unearthed by audit team should immediately be taken note of by the Government.
- ii** Audit teams must be trained in forensic audit.
- iii** Pending audit queries at every office should be put in public domain.

14 Vigilance Network – Recommendations

- i** A national database containing the details of all corruption cases at all levels should be created.



PROTECTING THE HONEST CIVIL SERVANT

1 Recommendations

- i Every allegation of corruption against a public servant must be examined in depth at the initial stage itself before initiating any enquiry.
- ii In matters relating to allegations of corruption, open enquiries should not be taken up straightaway on the basis of complaints. When secret enquiries are approved, it should be ensured that secrecy of such verification is maintained.

- iii The evaluation of results of verification should be done in a competent and just manner.
- iv The supervisory officers in the investigating agencies should ensure that only those public servants are prosecuted against whom the evidence is strong.



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